

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
May 7, 2026  
8:30 a.m./1:30 p.m.

**8. JUSTIN SIMARRO V. YAJAIRA SIMARRO**

**PFL20200099**

On February 3, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. It was served on February 1, 2026.

On March 6, 2026, Respondent filed a declaration for the mediator. It was served on March 6<sup>th</sup>.

The parties attended Child Custody Recommending Counseling (CCRC) on March 12, 2026. They were unable to reach any agreements therefore a report with recommendations was prepared and mailed to the parties on April 14, 2026.

Respondent filed another declaration on April 23<sup>rd</sup>, it was served on April 24<sup>th</sup>.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent is requesting sole legal and sole physical custody of the minor.

After reviewing the filings as outlined above, the court finds the recommendations in the April 14, 2026 CCRC report to be in the best interests of the minor with the exception of the Parenting Time section and the section titled Alcohol or Substance Abuse. The court is not adopting those two sections; the remaining sections are adopted as the orders of the court. The parties are to continue the visitation schedule that they are currently practicing – Petitioner to have the minor every other Monday at 6:00 pm to Wednesday at 12:00 pm and Friday at 6:00 pm to Sunday at 12:00 pm.

The court is declining to go to a week on/week off schedule as the court is concerned with Petitioner's clear manipulation of the child and his discussions of the court proceedings with the child. Additionally, regarding the knife, while the court understands that the minor has been taught to use it as a tool while working on Petitioner's property, the problem is that Petitioner has now allowed the minor to have access to the knife twice while unsupervised. The lack of supervision over the minor which resulted in him bringing the knife to school once and to an extracurricular event the second time is concerning. Whether or not the minor should be allowed to use the knife for projects at home is a difference in parenting styles. Allowing the minor to bring the knife to school and sporting events while unsupervised is a safety concern. Whether Petitioner allowed the minor to take the knife unsupervised, or if the minor took the knife from Petitioner's truck without Petitioner knowing, the fact remains that Petitioner was not sufficiently supervising the minor to ensure that he did not have access to an item that poses a risk to his safety. As

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such, the court cannot find that an increase in Petitioner's parenting time would be in the best interest the minor at this time.

All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #8: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE THE COURT FINDS THE RECOMMENDATIONS IN THE APRIL 14, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR WITH THE EXCEPTION OF THE PARENTING TIME SECTION AND THE SECTION TITLED ALCOHOL OR SUBSTANCE ABUSE. THE COURT IS NOT ADOPTING THOSE TWO SECTIONS, THE REMAINING SECTIONS ARE ADOPTED AS THE ORDERS OF THE COURT. THE PARTIES ARE TO CONTINUE THE VISITATION SCHEDULE THAT THEY ARE CURRENTLY PRACTICING – PETITIONER TO HAVE THE MINOR EVERY OTHER MONDAY AT 6:00PM TO WEDNESDAY AT 12:00 PM AND FRIDAY AT 6:00PM TO SUNDAY AT 12:00 PM.**

**ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.**

**RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**9. TODD STANLEY V. HANNAH COLE**

**24FL0221**

Respondent filed an RFO on February 2<sup>nd</sup> seeking to have Petitioner deemed a vexatious litigant. The RFO and all other required documents were served on February 4<sup>th</sup>.

While Respondent concedes that a party represented by counsel cannot be deemed a vexatious litigant and she notes her belief that Petitioner was represented by counsel as of March 13<sup>th</sup> she is still seeking to have the court issue the vexatious litigant designation.

Parties appeared for the hearing on March 26, 2026. Petitioner requested the matter be continued to allow additional briefing on the request. The court set a briefing schedule and stayed its tentative ruling on the vexatious litigant portion of the ruling only. The court set a review hearing for May 7, 2026.

Petitioner filed a Brief on April 24, 2026. It was served on Respondent and Minors' Counsel the same day. Petitioner objects to the vexatious litigant designation and argues that Petitioner's filings do not come within any of the provisions of Code of Civil Procedure section 391.

Respondent filed a Responsive Brief on April 27, 2026. It was served on Petitioner the same day. The court does not have a Proof of Service showing Minors' Counsel was properly served. As such, the court cannot consider the Responsive Brief.

Minors' Counsel has not filed a Brief on the issue of vexatious litigant.

The purpose of the vexatious litigant statute is to curb the misuse of the judicial process by self-represented litigants who repeatedly file unmeritorious litigation, or motions, or who repeatedly attempt to relitigate issues that have already been decided by the court. Shalant v. Girardi, 51 Cal. App. 4<sup>th</sup> 1164 (2011). To be declared a vexatious litigant the self-represented party must meet at least one of four statutory definitions. These definitions include an individual who "...repeatedly relitigates or attempts to relitigate, in propria persona, either (1) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined;" or one who "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." Cal. Civ. Pro. § 391(b)(2) & (b)(3). A finding of as few as three motions on the same issue has been upheld as grounds for a